

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: August 1, 2024 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 11	22CV399413	Li Juan Liu v. Kenneth To	Motion to set aside default: there is no proof of service of the motion in the file, and the court has received no response to the motion from the plaintiff. On the other hand, plaintiff has filed a request for a court reporter and a request for an interpreter for the August 1, 2024 hearing, which indicates that the plaintiff may be aware of this motion. <u>Parties to appear</u> to address the apparent notice defect.
LINE 12	19CV360439	Mesfin Regassa Ayle et al. v. Keith Laverne Booth et al.	Click on LINE 5 or scroll down for ruling in lines 5 & 12.

- oo0oo -

Calendar Line 2

Case Name: *Soraya Vela v. Santa Clara County Office of Education*

Case No.: 23CV423212

I. BACKGROUND

Plaintiff Soraya Vela brings this action against defendant Santa Clara County Office of Education (“SCCOE”) for employment discrimination and retaliation.

Vela is a licensed clinical social worker and a Latina who speaks Spanish. (First Amended Complaint (“FAC”), ¶ 8.) SCCOE is a public entity responsible for Santa Clara County public schools, facilities, and school employees. (FAC, ¶ 9.) On February 2, 2022, SCCOE hired Vela as a Mental Health School Wellness Specialist II, a managerial, hourly position. (FAC, ¶ 14.) Vela worked full time for SCCOE until February 28, 2022, when she was terminated. (FAC, ¶ 16.)

As part of her job, Vela was responsible for ensuring compliance with applicable state and federal laws, codes, and regulations related to student support and wellness services. (FAC, ¶ 15.) She was also required to observe health and wellness centers to gain operating knowledge. (FAC, ¶ 18.) When visiting these centers, she encountered employees who reported that they were suffering from a lack of access to ergonomic accommodations and disability accommodations, a lack of phone lines, a lack of locking cabinets, discrimination, and wage theft. (*Ibid.*) Additionally, bilingual employees were not being paid for their language skills. (FAC, ¶ 19.) These violations had a negative impact on those who spoke languages other than English, people with disabilities, and people with workplace injuries. (*Ibid.*)

After discovering these issues, Vela contacted a union representative (Sarah Gianocaró, the Service Employees International Union Chapter President), and reported them to her on a telephone call. (FAC, ¶ 25.) Gianocaró requested that Vela document her complaints by drafting an email to have them addressed by the human resources department. (*Ibid.*)

On February 15, 2022, Katie Taylor, Vela’s colleague, emailed Vela regarding ongoing violations of employee rights. (FAC, ¶ 28.) On February 17, 2022, Vela sent an email (the “February 17 email”) to Taylor and ten other co-workers, stating that she had spoken to the union steward. (FAC, ¶ 30.) Vela requested that her co-workers send her additional information regarding their use of multiple languages in the workplace. (FAC, p. 9 [image of February 17 email].) She also informed her co-workers to use ticket services to request equipment and ergonomic evaluations. (*Ibid.*) “[S]omehow,” someone forwarded the February 17 email to Vela’s supervisor (Corrine Freese) and Director Chaunise Powell. (FAC, ¶ 32.)

On February 25, 2022, Vela received an email informing her of a probationary evaluation on February 28, 2022. (FAC, ¶ 33.) At the February 28 meeting, Vela’s supervisors informed her that her employment was terminated. (FAC, ¶ 34.) Vela’s supervisor later admitted that she was terminated because of the February 17 email. (FAC, ¶ 37.)

On September 20, 2023, Vela filed her original complaint in this case. On February 23, 2024, she filed the FAC, asserting the following causes of action: